

1 ENGROSSED SENATE
2 BILL NO. 1884

By: Bullard of the Senate

3 and

4 Townley of the House

5
6 An Act relating to school employees; amending 70 O.S.
7 2021, Section 509.11, which relates to equal access
8 to employees of a school district; modifying what
9 constitutes access regarding statewide professional
10 educators' associations; prohibiting equal access
11 from being conditional on certain provisions or
12 services; directing certain communications to be
13 classified as promotional events; prohibiting equal
14 access from including certain communications;
15 permitting distribution of certain materials in
16 school mailboxes; prohibiting a school district from
17 requiring a fee or other payment from statewide
18 professional educators' associations for certain
19 activities; requiring certain notification if certain
20 equal access is denied; requiring notification of the
21 State Board of Education if equal access is not
22 granted within certain time period; updating
23 statutory language; allowing school district
24 employees to terminate membership in certain
organization at any time; prohibiting an organization
from taking certain actions; prohibiting certain
policy or agreement from placing certain conditions
or requirements on certain initiation or termination;
providing certain construction; providing for
codification; providing an effective date; and
declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 70 O.S. 2021, Section 509.11, is
23 amended to read as follows:
24

1 Section 509.11. A. No school district, employee of a school
2 district, or employee organization shall deny by any means,
3 including a collective bargaining agreement, a statewide
4 professional educators' association equal access to employees of the
5 school district, to the same extent that access is granted to other
6 educators' associations. For purposes of this section, access shall
7 include, but is not limited to:

8 1. Setting up informational tables at in-service or other
9 similar teacher meetings;

10 2. Speaking at in-service or other similar teacher meetings;

11 3. Distributing information ~~in school mail boxes or~~ through the
12 school ~~e-mail~~ electronic mail system;

13 4. Utilizing school district meeting rooms during nonworking
14 hours;

15 5. Representing employees in employment matters, when requested
16 by the employee;

17 6. Posting information on school district bulletin boards or
18 other common space displays; and

19 7. ~~Utilizing school district printing services~~ Promotional
20 events.

21 B. Any association which utilizes school district facilities or
22 services shall reimburse the district for any costs incurred by the
23 district due to association activities.

1 C. Equal access shall not be conditional on provisions or
2 services requested by school districts including, but not limited
3 to, furnished meals, snacks, gifts, donations, or other types of
4 sponsored activities.

5 D. Communication by an employee, volunteer, or member of a
6 statewide professional educators' association on behalf of the
7 association or a local affiliate group that pertains to a collective
8 bargaining agreement or negotiated employment contract pursuant to
9 Section 509.2 of this title shall, for the purposes of this section,
10 be classified as a promotional event hosted by the statewide
11 association, and all other statewide professional educators'
12 associations and their employees shall be granted equal access to
13 communicate with school employees to the same extent. For the
14 purposes of this section, communication includes, but is not limited
15 to, presentations, speaking events, meetings, electronic mails,
16 informational displays, and virtual forum posts. For the purposes
17 of this section, equal access shall not include communications
18 between a statewide professional educators' association and a school
19 district board of education or its duly designated representatives
20 prior to a collective bargaining agreement or negotiated employment
21 contract being agreed upon pursuant to Section 509.2 of this title.

22 E. Distribution of promotional materials to all employees in
23 school mailboxes by employees or associated members of a statewide
24 professional educators' association shall be permitted. Promotional

1 materials may include, but are not limited to, promotional
2 brochures, competitor comparison brochures, informational pamphlets,
3 membership applications, gift items, and association member gifts.

4 F. School districts shall not require a fee or other payment
5 from statewide professional educators' associations for access,
6 promotional material review, promotional material distribution, or
7 other related activities.

8 G. 1. A statewide professional educators' association that is
9 not allowed access as provided for in this section shall notify the
10 board of education of the school district where access was denied.

11 2. Upon notification, if the school district board of education
12 does not ensure equal access is provided to the statewide
13 professional educators' association within fifteen (15) days, the
14 association shall notify the State Board of Education.

15 SECTION 2. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 509.13 of Title 70, unless there
17 is created a duplication in numbering, reads as follows:

18 A. A school district employee who is a member of an employee
19 organization designated pursuant to Section 509.2 of Title 70 of the
20 Oklahoma Statutes may terminate membership in the employee
21 organization at any time. Upon receipt of a school district
22 employee's termination of membership via mail or electronic mail,
23 the employee organization shall terminate the employee's membership
24 and cease collection of dues.

1 B. An employee organization designated pursuant to Section
2 509.2 of Title 70 of the Oklahoma Statutes shall be prohibited from:

3 1. Limiting a school district employee's right to terminate his
4 or her membership only during certain dates or by using specific
5 forms; and

6 2. Requiring a school district employee to disclose the reason
7 for his or her membership termination.

8 C. 1. No school district board of education policy or
9 negotiated agreement shall place any other conditions or
10 requirements on any school district employee to initiate or
11 terminate membership in an employee organization.

12 2. Any negotiated agreement in effect upon the effective date
13 of this act that places any conditions or requirements on any school
14 district employee to initiate or terminate membership in an employee
15 organization shall be null and void upon the effective date of this
16 act.

17 SECTION 3. This act shall become effective July 1, 2026.

18 SECTION 4. It being immediately necessary for the preservation
19 of the public peace, health, or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

1 Passed the Senate the 26th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives